

§ 353.6. Restitution. 1. At the conclusion of the dispositional hearing the court may:

(a) recommend as a condition of placement, or order as a condition of probation or conditional discharge, restitution in an amount representing a fair and reasonable cost to replace the property, repair the damage caused by the respondent or provide the victim with compensation for unreimbursed medical expenses, not, however, to exceed one thousand five hundred dollars. In the case of a placement, the court may recommend that the respondent pay out of his or her own funds or earnings the amount of replacement, damage or unreimbursed medical expenses, either in a lump sum or in periodic payments in amounts set by the agency with which he or she is placed, and in the case of probation or conditional discharge, the court may require that the respondent pay out of his or her own funds or earnings the amount of replacement, damage or unreimbursed medical expenses, either in a lump sum or in periodic payments in amounts set by the court; and/or

(b) order as a condition of placement, probation, or conditional discharge, services for the public good including in the case of a crime involving willful, malicious, or unlawful damage or destruction to real or personal property maintained as a cemetery plot, grave, burial place, or other place of interment of human remains, services for the maintenance and repair thereof, taking into consideration the age and physical condition of the respondent.

2. If the court recommends restitution or requires services for the public good in conjunction with an order of placement pursuant to section 353.3 or 353.5, the placement shall be made only to an authorized agency, including the division for youth, which has adopted rules and regulations for the supervision of such a program, which rules and regulations, except in the case of the division for youth, shall be subject to the approval of the state department of social services. Such rules and regulations shall include, but not be limited to provisions: (i) assuring that the conditions of work, including wages, meet the standards therefor prescribed pursuant to the labor law; (ii) affording coverage to the respondent under the workers' compensation law as an employee of such agency, department, division or institution; (iii) assuring that the entity receiving such services shall not utilize the

same to replace its regular employees; and (iv) providing for reports to the court not less frequently than every six months.

3. If the court requires restitution or services for the public good as a condition of probation or conditional discharge, it shall provide that an agency or person supervise the restitution or services and that such agency or person report to the court not less frequently than every six months. Upon the written notice submitted by a school district to the court and the appropriate probation department or agency which submits probation recommendations or reports to the court, the court may provide that such school district shall supervise the performance of services for the public good.

4. The court, upon receipt of the reports provided for in subdivisions two and three may, on its own motion or the motion of the agency, probation service or the presentment agency, hold a hearing pursuant to section 355.1 to determine whether the dispositional order should be modified.